ORDINANCE 23-034 Z

AN ORDINANCE ESTABLISHING A FEE SCHEDULE FOR BUILDING CONSTRUCTION/RENOVATIONS/ZONING & PLANNING FEES TO BE CHARGED BY THE BUILDING/ZONING/PLANNING OFFICIALS

IT IS HEREBY ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLLOWS:

SECTION 1. That Chapter Sixteen (16), Section 16-1 of the Code of Ordinances of the Town of North Providence be amended as follows:

Sec. 16-26. Housing board of review.

(a) *Membership.* There is hereby created a housing board of review, hereinafter called the board, consisting of nine members. The minimum housing committee shall serve as the housing board of review.

(b) *Organization.* Meetings of the board shall be held at the call of the chairperson and at such other times as the board may determine. The board shall keep minutes of its proceedings, showing the vote upon each question, and shall keep records of its decisions and findings and the reasons therefor, and of its examinations and other official actions, all of which shall be filed immediately in the office of the board and shall be a public record. The chairperson, or in his absence the acting chairperson, may administer oaths and compel the attendance of witnesses. All hearings of the board shall be open to the public.

(c) *Powers of the housing board of review.*

(1) The housing board of review shall have the power to hear and decide appeals where it is alleged that there is error in any order, requirement, decision or determination made by the enforcing officer in the enforcement of this article or of any rule or regulation adopted pursuant to this article.

(2) Where, by reason of an extraordinary and exceptional condition or situation unique to the property involved, the strict application of this article, or any rule or regulation adopted pursuant to this article would result in peculiar and exceptional difficulties to, or exceptional and undue hardship upon, the person upon whom a compliance order has been issued, the housing board of review shall have the power to vary from such strict application to the least extent necessary to relieve such difficulties or hardship, provided such relief may be granted without substantial detriment to public health, safety, morals and general welfare and without substantial impairment of the intent and purpose of this article, or rule or regulation adopted pursuant to this article.

(3) In exercising the above-mentioned powers, the board may reverse or affirm wholly or partly, or may modify any order, requirement, decision or determination of the enforcing officer and may make such order, requirement, decision or determination as ought to be made, and to that end shall have all the powers of the enforcing officer from whom the appeal was taken.

(4) In order to hear an appeal, a quorum of three members of the board must be present. In the absence of a quorum, however, any number of members present less than three may convene for the sole purpose of continuing such hearing to a later date. A concurring vote of a majority of the members of the board present at the hearing shall be necessary to reverse or modify any order or decision of the enforcing officer and to authorize a variance or modification in the application of any provisions of this article, or of any rule or regulation adopted pursuant to this article. In the event of a tie vote the order of the enforcing officer shall be deemed to be sustained.

(d) *Procedure.*

(1) Appeals to the board may be taken by any person upon whom a compliance order has been issued by the enforcing officer. Appeals shall be taken within ten days after service of the compliance order and such appeals shall be filed with the board and shall specify the grounds thereof. The board shall immediately transmit a copy of the appeal to the enforcing officer. Upon receipt by the enforcing

officer of the appeal, he shall forthwith transmit to the board, all papers constituting the record upon which the compliance order was based.

(2) An appeal shall stay all proceedings in furtherance of the action appealed from unless the enforcing officer from whom the appeal is taken certifies to the board after notice of the appeal has been transmitted to him that, by reason of facts stated in the certificate, a stay would, in his opinion, cause a serious hazard or immediate peril to the health or safety of the occupants of a dwelling or of the public. In such case proceedings shall not be stayed otherwise than by a restraining order which may be granted by a court of competent jurisdiction on application therefor and upon notice of the enforcing officer from whose order the appeal is taken and on due cause shown.

(3) The board shall fix a reasonable time for the hearing of the appeal, give due notice thereof to the party making the appeal and the enforcing officer and decide the same within a reasonable time. At the hearing any party may appear in person or by agent or attorney.

(4) Appeal fee. Each application for appeal shall be accompanied by a filing fee of $2.00 of $100, payable to the Town of North Providence and deposited in the office of the town clerk. A stenographic record shall be maintained for all hearings on appeals and the costs of such stenographic record shall be defrayed by the applicant.

SECTION 2: The Building/Zoning & Planning Officials of the Town of North Providence are hereby directed to take any and all necessary action to impose and enforce the fees contained herein.

SECTION 3: All ordinances or parts thereof inconsistent herewith are hereby repealed.

SECTION 4: This ordinance shall take effect upon passage.

APPROVED AS TO FORM AND LEGALITY:

TOWN SOLICITOR

ADOPTED: January 2, 2024

COUNCIL PRESIDENT

APPROVED: January 9, 2024

MAYOR

TOWN CLERK